

AMENDED
DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
FRIDAY, SEPTEMBER 18, 2026

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

JPMORGAN CHASE BANK N.A. vs. BRANDON STEWART
Case No. CL24-02763

Motion for Relief from Waiver of Objections

TENTATIVE RULING

The motions for relief from waiver of objections are granted. Plaintiff and Cross-defendants have subsequently served responses that are in substantial compliance and their initial failure serve timely responses were the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc. §§ 2030.290(a), 2031.300(a).)

Defendant STEWART is awarded costs in the amount of \$240.00. (Two motions to compel, two oppositions to Plaintiff's motion for relief from waiver of objections = \$60.00 x 4), due and payable from Plaintiff to Defendant within thirty days of the date of service of this order.

JAVON CHRISTINA ROSS vs. RONALD SCRIVER; ET AL.
Case No. CU24-06538

Defendant's Motion to Compel Further Responses to Form Interrogatories, Set Two and Special Interrogatories, Set Two

TENTATIVE RULING

Defendant RONALD DEAN SCRIVNER moves to compel Plaintiff JAVON CHRISTINA ROSS's further responses to one form interrogatory from his second set and sixty-one special interrogatories from his second set.

Meet and Confer Efforts. The court first considers the adequacy of the moving party's efforts to meet and confer to work discovery issues out before resorting to a motion to compel further responses. Code of Civil Procedure section 2016.040 requires a declaration "showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion" to compel. Defendant's counsel's attached declaration in support of the motion states that counsel served the discovery requests at issue on January 22, 2026. (Declaration of Caitlyn M. Harris in Support of Motion to Compel Further Responses to Interrogatories ("Harris Dec.") at ¶ 4, Exhibit A.) Plaintiff responded on February 24, 2026. (*Id.* at ¶ 5, Exhibits B-C.) On March 8, 2026 Defendant sent a meet and confer letter. (*Id.* at ¶ 8, Exhibit F.) The parties talked the matters over, granting each other some extensions of time to respond or file motions, and Plaintiff served supplemental responses to the interrogatories at issue on April 8, 2026. (*Id.* at ¶¶ 9-11, Exhibits G-I.) Defendant told Plaintiff there were some typos in the supplements and Plaintiff served tidier versions on April 16, 2026. (*Id.* at ¶ 12.) The instant motion was filed on April 17, 2026.

The trial court has discretion in determining whether adequate meet and confer efforts preceded the filing of the motion. (*Obregon v. Superior Court* (1998) 67 Cal.App.4th 424 [factors include complexity of discovery issues, history of counsel in prior disputes, judge's gut feeling; sending one brief letter 13 days prior to deadline to file motion was not sufficient attempt].) The court finds Defendant made sufficient efforts to meet and confer in good faith. While Defendant did not meaningfully further attempt to meet and confer after receipt of Plaintiff's April 8, 2026 supplemental responses, Defendant's meet and confer efforts preceding those supplemental responses identified issues with the previous responses that the supplemental responses did not address. Plaintiff's supplemental responses are materially the same as her initial responses and demonstrated an impasse making it reasonable to file a motion to compel further responses.

Analysis. Defendant's numerous special interrogatories at issue follow a pattern. Up through Special Interrogatory #77 they come in pairs asking Plaintiff to first identify each witness who supports her contention of injury to a given body part (legs, feet, brain, so on) and then identify each document supporting that contention. Plaintiff's supplemental responses to these pairs all refer Defendant to her existing form interrogatory responses and document production. Subsequent special interrogatories seek witnesses and supporting documents for claims of general damages, compensatory damages, lost wages, loss of future earnings, proof of negligence, and other legal contentions; to these Plaintiff's supplemental responses continue to generally refer Defendant to existing discovery responses.

Plaintiff's general references to "her medical records and bills produced with her Responses to Defendant's Request for Production of Documents, Sets One and Two"

and like references to her previous discovery responses are inadequate. This response does not answer the questions posed of which treating providers and documents have information on which of Plaintiff's alleged injuries from the collision underlying this action. General references to previous discovery responses are also insufficient to answer Defendant's interrogatories concerning general damages, compensatory damages, lost wages, and contentions of fault.

The form interrogatory at issue, #17.1, requests witness contact information pertaining to witnesses with information regarding Plaintiff's responses to requests for admissions. Plaintiff's response to this interrogatory does not contain the requested contact information, instead generally referring Defendant to her "treating physicians" and "family and friends."

Conclusion. Defendant's motion is granted. Plaintiff is ordered to serve supplemental responses to all interrogatories at issue within thirty days of the date of service of this order.

DEMARCUS PETTIFORD; ET AL. vs. FCA US, LLC; ET AL.
Case No. CU24-09802

Motion for Judgment on the Pleadings

TENTATIVE RULING

Defendant FCA US, LLC's motion for judgment on the pleadings is denied.

The standard for ruling on a motion for judgment on the pleadings is essentially identical to that of a demurrer. (*In re Guardianship of Olivia J.* (2000) 84 Cal.App.4th 1146, 1155.) The court must accept the truth of factual allegations made in the pleading, giving the allegations a liberal construction. (*Gerawan Farming, Inc. v. Lyons* (2000) 24 Cal.4th 468, 515-516.) When a pleading is challenged based on the statute of limitations, the dates alleged in the complaint must show clearly and affirmatively that the action is barred by the applicable statute of limitations. (*Lee v. Hanley* (2015) 61 Cal.4th 1225, 1232; *Roman v. County of Los Angeles* (2000) 85 Cal.App.4th 316, 324; *Lockley v. Law Office of Cantrell* (2001) 91 Cal.App.4th 875, 881.)

The Song-Beverly Act "contains no express limitations period for a civil action." (*Krieger v. Nick Alexander Imports, Inc.* (1991) 234 Cal.App.3d 205, 213.) In 2024, the Legislature enacted Code of Civil Procedure section 871.21, which imposes a statute of limitations applicable to Plaintiffs' causes of action, but the statute did not become effective until after Plaintiffs filed their action and has no applicability to this case. Prior to passage of section 871.21, Song-Beverly Act claims were controlled by the four-year statute of limitations period provided by the Uniform Commercial Code rather than the three-year period pursuant to Code of Civil Procedure section 338(a). (*Krieger*, 234 Cal.App.3d at 215.)

It cannot be determined from the allegations of the first amended complaint that Plaintiffs' first three causes of action are clearly and affirmatively barred by the statute of limitations. Plaintiffs alleged that they purchased their vehicle on November 4, 2017 with the warranties given as set forth in Exhibit A of the pleading, including a five-year powertrain warranty covering the engine. (FAC, ¶¶ 10-11, Exh. A.) Plaintiffs alleged that on August 4, 2022 (within five years of purchase), they presented the vehicle to an authorized repair facility for warranty repair for a check engine light and a malfunction in the remote start feature, resulting in "warranty repairs including replacing the evap purge line assembly." (FAC, ¶ 16.) Despite representation that the vehicle had been repaired and working as intended, Plaintiffs alleged that they "continued to experience symptoms of the defects. (FAC, ¶ 21.) The complaint was filed within four years of discovery of the defect and alleged failure to repair or conform the defect to warranty.

Additionally, Plaintiffs do not allege any actual dates on which Defendant is alleged to have failed to commence repairs within a reasonable time or complete repairs within 30 days in violation of Civil Code section 1793.2(b) or to have failed to make available sufficient service literature and replacement parts to authorized service and repair facilities during the express warranty period. In fact, no actual defect or malfunction could be reproduced during inspection during December 7, 2017 (and therefore no repair could be commenced nor completed and no service literature or parts could have been insufficient) when the vehicle was first presented for repair, and all other dates the vehicle was presented for repair are within four years of commencement of this suit.

Lastly, breach of the implied warranty of merchantability usually occurs at the time a product is sold or delivered, but may be breached by a latent defect that is undiscoverable at the time of sale. (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1304.) The Song-Beverly Act provides a duration of up to one year for the implied warranty, during which time the warranty may be breached. (*Id.* at 1309.) Consequently, absent delayed discovery or some other basis for tolling or exception, the statute of limitations had to have run by November 4, 2022. But, Plaintiffs have adequately pleaded delayed discovery by alleging that the vehicle had been sold with latent defects (FAC, ¶ 69), including an engine defect (FAC, ¶ 30), that they presented the vehicle for repair for engine issues on multiple occasions (FAC, ¶¶ 16-20), and that Plaintiffs were repeatedly told that the vehicle had been repaired but continued to experience symptoms of the defects (FAC, ¶ 21).

ANEISHA GREEN vs. WILSHIRE LAW FIRM
Case No. CU25-06166

Plaintiff's Motion to Compel Defendant's Further Response to Requests for Production,
Set Three

TENTATIVE RULING

THE PARITES ARE TO APPEAR FOR THE REASON STATED BELOW.

Plaintiff ANEISHA GREEN moves to compel Defendant WILSHIRE LAW FIRM to further respond to four requests for production of documents within her third set of requests. The parties agree that code-compliant further responses have been provided.

Code of Civil Procedure section 2031.310, subdivision (h) requires sanctions against a party that unsuccessfully makes or opposes a motion to compel further responses to requests for production, unless the court finds that the losing party acted with substantial justification or that other circumstances weigh against the imposition of sanctions. Defendant's further responses were only provided after this motion was filed. Defendant does not provide substantial justification for failing to provide further responses earlier in order to avoid motion practice.

Plaintiff's motion is granted as follows: sanctions are imposed against Defendant in the amount of \$560.00 (reasonable attorney's fee plus \$60.00 filing fee.) The sanctions are due and payable within thirty days of the date of service of this order.

THE PARTIES ARE TO APPEAR TO UPDATE THE COURT ON THE STATUS OF THE ADDITIONAL DISCOVERY MOTIONS THAT HAVE BEEN FILED BY PLAINTIFF AND DEFENDANT.

NORMAN ROSS DEYOUNG, JR. vs. ELECTRONIC ARTS, INC.
Case No. CU25-07681

ELECTRONIC ART's Demurrer to Second Amended Complaint

TENTATIVE RULING

THE PARTIES ARE TO APPEAR.

JABIL PROCUREMENT SERVICES, INC. vs. HARBINGER PRODUCTION, INC.
Case No. CU26-00776

Motion to be Relieved as Counsel

TENTATIVE RULING

The unopposed motion to withdraw by Counsel for Defendant HARBINGER PRODUCTION, INC. is granted.

The case management conference for January 14, 2027 at 9:00 a.m. is confirmed.

Department 7 is inviting you to a scheduled ZoomGov meeting.
Join ZoomGov Meeting

<https://solano-courts-ca-gov.zoomgov.com/j/1611554664?pwd=T3U4QlBGWWNWaGlhXJTcGxIVHRXZz09>

Meeting ID: 161 155 4664

Passcode: 818575

One tap mobile

+16692545252,,1611554664#,,,,*818575# US (San Jose)

+14154494000,,1611554664#,,,,*818575# US (US Spanish Line)

Dial by your location

+1 669 254 5252 US (San Jose)

+1 415 449 4000 US (US Spanish Line)

+1 669 216 1590 US (San Jose)

+1 551 285 1373 US (New Jersey)

+1 646 828 7666 US (New York)

+1 646 964 1167 US (US Spanish Line)

+1 833 568 8864 US Toll-free